

By Landlord/Agent

Under the Residential Tenancies Act 2010

To Richard Mclean

Subject: Notice to Terminate Tenancy Agreement | 3 Warrigo Street (Lot 4), Sadler NSW 2168

Dear Richard,

We give you notice to deliver up vacant possession of the premises at 3 Warrigo Street (Lot 4), Sadler NSW 2168

On 26 September 2024 termination date

You can vacate and hand back possession any time prior to this date and your responsibility to pay rent ceases from the date when you hand back the possession (Section 110)

This notice is being given on the following grounds:

1. Non-payment of rent

- a. Rental ledger as of 11/09/2024 is annexed as a part of this notice. Please refer Annexure 1 for the Rental Ledger
 - i. You have rent outstanding for 71 days , outstanding amount as on 11/09/2024 is \$3,042.86

2. Serious breach of your responsibility as tenant to treat Aligned Community Care Staff with Courtesy and respect

- a. Please refer Annexure 2 for Lodging Agreement for Tenancy Accommodation annexed as a part of this notice
 - i. Clause 3.1('C) of the Lodging Agreement for Tenancy Accommodation provides that it is your obligation to Treat Service Provider (**Aligned Community Care**) staff with courtesy and respect.
 - ii. Your actions listed below is Serious breach of your responsibility to Treat Service Provider (**Aligned Community Care**) staff with courtesy and respect
 - Death threats made via text message to Disability Service Manager
 - Threats and abuse made to Disability Service Manager, over the phone
 - Recording support staff without their consent
 - Property damage to staff vehicles
- b. We have annexed screen shot of some of the message that was considered in deciding occurrence of serious breach on your part. Please refer Annexure 3.

14 days' notice (Section 88 & 89) (NB: Tenant must be at least 14 days behind with their rent at the time of Service. If after serving this notice the tenant pays all the rent or enters into and fully complies with an agreed repayment plan the tenant is able to stay in the premises and continue the tenancy, unless the landlord/agent applies for and successfully obtains a termination order due to the tenants frequent failure to pay rent on time.

- Please refer to the attached Fact Sheet for further information on when this notice can be issued to a tenant.
- Please also refer to annexure
 - Annexure 1 - Rental Ledger
 - Annexure 2- Lodging Agreement for Tenancy Accommodation
 - Annexure 3- screen shot of some of the message that was considered in deciding occurrence of serious breach on your part

Service of Notice (Section 223)

Notice given by: Emailing it to the tenant

Sincerely,



Mahendra Giri

Aligned Community Care Pty Ltd

admin@alignedcommunitycare.com.au

11 September 2024

For information about your right and obligations as a tenant, contact

- NSW Fair Trading on 13 32 20 or www.fairtrading.nsw.gov.au
- Law Access NSW on 1300 888 529 or www.lawaccess.nsw.gov.au
- Your local Tenants Advice and Advocacy Service at www.tenants.org.au

Fact Sheet| Information for the Tenant

- If you dispute the grounds (reasons) on which this notice was given you should first attempt to resolve it by Contacting the Landlord or agent. You can contact landlord by sending email to admin@alignedcommunitycare.com.au
- If you fail to leave the premises by the specified day the landlord /agent may apply to the NSW Civil and Administration Tribunal for an order terminating the agreement. In the case of non-payment of rent a termination order can be applied for on the same day or any time after the notice is served. A 30-day time limit from the termination date applies to all termination application to the Tribunal.
- You can apply to the Tribunal to have this notice declared void and of no effect if you believe it was issued for retaliatory reasons.
- If you do not vacate your tenancy can only be ended by the Sheriff enforcing a warrant for possession issued by the Tribunal. Penalties can be imposed on a landlord, agent or any other person who seeks to remove you from the premises other than by following the current process
- Except where this notice is issued because the fixed terms period is ending, you are able to vacate and hand back possession at any time before the date you have been requested to vacate. You do not have to give your own notice, you only have to pay rent to the date possession is given.
- If this notice has been issued due to non-payment of rent, if you pay all the rent owing or if you enter into and fully comply with a repayment plan agreed with the landlord/agent , you will be able to stay in the premises and continue your tenancy unless the landlord/agent applies for and successfully obtains a termination order due to your frequent failure to pay rent on time (See Section 88 & 89 of the Act)
- It is your responsibility to leave the premises as near as possible in the same condition, fair wear and tear excepted , as set out in the original condition report.
- When you vacate the premises, make sure that you return all keys to the Landlord or Landlord agent , supply a forwarding address, make arrangements for a final inspection to be done , notify your utilities companies and other relevant parties , and make arrangements for your mail to be forwarded.

Annexure 1 - Rental Ledger

Date: 11/09/2024

To Richard Mclean
NDIS Number: 430938559
3 Warrigo Street, Sadlier, NSW

Subject: Tenancy Ledger

Dear Richard,

This is to serve you Tenancy Ledger and notify you about your outstanding rental obligations.

Participant (Tenant) Name	Richard Mclean	Weekly Rent	300
NDIS Number:	430938559	Total Outstanding Amount:	
Residential Address:	3 Warrigo Street, Sadlier, NSW	Bond Held	NIL
Commencement of Tenancy Agreement Date:	26/06/2024	Date of issue of Tenancy Ledger	11/09/2024

Rental Statement for Richard Mclean From 26/06/2024 To 11/09/2024

Weeks Start Date • Date of Commencement of Lease for First week • Monday for rest of the week	Week End Date • Date of Issue of Tenancy Ledger • Sunday for all other week	Number of Days	Weekly Rent	Rent Paid	Outstanding rent
26/06/2024	30/06/2024	5	214.29		214.29
1/07/2024	7/07/2024	7	300.00		514.29
8/07/2024	14/07/2024	7	300.00		814.29
15/07/2024	21/07/2024	7	300.00		1,114.29
22/07/2024	28/07/2024	7	300.00	300.00	1,114.29
29/07/2024	4/08/2024	7	300.00		1,414.29
5/08/2024	11/08/2024	7	300.00		1,714.29
12/08/2024	18/08/2024	7	300.00		2,014.29
19/08/2024	25/08/2024	7	300.00		2,314.29
26/08/2024	1/09/2024	7	300.00		2,614.29

Rental Statement for Richard Mclean From 26/06/2024 To 11/09/2024

Weeks Start Date • Date of Commencement of Lease for First week • Monday for rest of the week	Week End Date • Date of Issue of Tenancy Ledger • Sunday for all other week	Number of Days	Weekly Rent	Rent Paid	Outstanding rent
2/09/2024	8/09/2024	7	300.00		2,914.29
9/09/2024	11/09/2024	3	128.57		3,042.86

Summary:	Days	Amount Due	GST	Net Owing
Total Days & Amount of Rent payable by Tenant from 26/06/2024 to 11/09/2024	78.00	3,342.86	0.00	3,342.86
Total Days & Amount of Rent Paid by Tenant from 26/06/2024 to 11/09/2024	7.00	300.00	0.00	300.00
Total Days & Amount of Rent Payment due by Tenant from 26/06/2024 to 11/09/2024	71.00	3,042.86	0.00	3,042.86

Sincerely,

Aligned Community Care Pty Ltd

admin@alignedcommunitycare.com.au

Annexure 2- Lodging Agreement for Tenancy Accommodation

Lodging Agreement for Tenancy Accommodation (Boarding not included in the service provided)

Parties

- **Participant**: Richard William McLean

Service provider: ALIGNED COMMUNITY CARE PTY LTD (ABN 12641953639), NDIS
RegistrationID: 4-IP1814N

Accommodation Address

- Accommodation Address: **3 Warrigo Street, Sadler, NSW**

Background

- A. **Service provider** provides board and/or lodging.
- B. **Service provider** at the request of the **Participant** has agreed to provide the services referred to in Item 6 of Schedule 1 (Services) subject to the terms of this Agreement.
- C. **Participant** has agreed to pay rent and other charges as stated in Schedule 2 of this agreement for the provision of service referred to in Item 6 of Schedule 1 (**Services**)
- D. This Agreement is made for the purpose of providing the **Participant** with tenancy at the residential accommodation managed by **Service provider**.
- E. The **Participant** is authorized to enter into this Agreement.

Operative Provisions

1. Definitions and Interpretation

1.1 In this Agreement:

- (a) **Act** means according to the State or Territory in which the Premises are located as specified in Item 5 of Schedule 1, the:
 - (i) New South Wales: *Boarding Houses Act 2012 (NSW)*
 - (ii) Western Australia: Common Law provisions only
 - (iii) Northern Territory: *Residential Tenancies Act 1997 (NT)*
 - (iv) Victoria: *Residential Tenancies Act 1997 (VIC)*
 - (v) Tasmania: *Residential Tenancies Act 1997 (TAS)*
 - (vi) South Australia: *Residential Tenancies Act 1997 (SA)*
- (b) **Authority** means any government, semi government, statutory, administrative, fiscal or judicial body, department, commission, authority, tribunal, public or other person with legal authority or responsibility relating to the Premises, Services, **Participant**, **Service Provider** or this Agreement.
- (c) **Board** means the provision of meals and does not include the provision of Lodging (accommodation)
- (c) **Board and Lodging** means the provision of accommodation, meal and the costs of utilities.
- (d) **COS** means Continuity of Support.
- (e) **FEES** means those costs the **Participant** is required to pay for provision of services provided by **SERVICE PROVIDER**.
- (f) **Guardian** means a guardian appointed under a law of the Commonwealth, a State or Territory.
- (g) **Lodging** means the provision of accommodation only – e.g. a room within a residential accommodation managed by Service provider.
- (h) **NDIS** means National Disability Insurance Scheme.
- (i) **Personal Information** means any information provided to or obtained by **SERVICE PROVIDER** in respect of the **Participant** in any way connected to or arising out of the provision of the Services by **SERVICE PROVIDER** to the **Participant**.

- (j) **Occupancy Principles** means those principles referred to in the Act with which the Premises and this Agreement must comply.
- (k) **SDA** means Specialist Disability Accommodation.
- (l) **Schedule** is a reference to a schedule to this Agreement unless the context otherwise requires.
- (m) **Facilitator/Coordinator** means the **SERVICE PROVIDER** representative assigned to oversee and manage the Premises.
- (n) **WHS** means Work Health and Safety.

2. Family Members/Guardian/Advocate

- (a) The **Participant** may choose a family member, Guardian or other person as their advocate to help speak for, assist and support the **Participant** in dealings with **SERVICE PROVIDER (Advocate)**.
- (b) The **Participant** may change their choice of Advocate at any time by notice in writing to **SERVICE PROVIDER**.
- (c) **SERVICE PROVIDER** acknowledges that where applicable any information required to be given to the **Participant** under the Act must also be given to the Advocate and, if applicable, their Guardian.

3. Rights and Obligations

3.1 Obligations

The **Participant**, to the best of their ability, and their Advocate or Guardian, must:

- (a) ensure the **Participant's Fees** are paid on time and kept up to date.
- (b) use the property for residential purposes only and not for any other purpose (including any illegal purpose).
- (c) treat **SERVICE PROVIDER** staff and contractors with courtesy and respect.
- (d) notify **SERVICE PROVIDER** of any change in circumstances within **five working days**, including but not limited to any changes to the nature or amount of funding provided by the government department, agency or other organization that is providing funding for the **Participant's** support.
- (e) notify the Manager and **SERVICE PROVIDER** if the **Participant** is planning any holidays or other absences.
- (f) advise the Manager and **SERVICE PROVIDER** if there are repairs or maintenance issues or WHS concerns affecting the Premises.
- (g) comply with all house rules and policies of **SERVICE PROVIDER** (including amendments from time to time), copies of which have been provided to the

Participant prior to entering into this Agreement or copies of which have been provided to the **Participant** prior to such amendment coming into effect, as the care may be.

- (h) not do or allow anything to be done to persons or property which may invalidate any insurance policy and/or rental agreement in respect of the Premises.
- (i) not do anything that will cause shared facilities to become obstructed, untidy, damaged or used for any purpose other than for which they are intended.
- (j) not keep or use in the Premises any portable kerosene or bar heaters.
- (k) assume financial responsibility for repairs that are in excess of reasonable "fair wear and tear" as outlined in this Agreement; and
- (l) comply with any Act, regulation, rule or direction of any Authority.

3.2 Rights

- (a) Board and Lodging entitles the **Participant** to the:
 - (i) use of a separate bedroom, electricity, gas and water, built in facilities including power points, telephone connection points, internet, lighting, smoke detector, curtains and blinds;
 - (ii) shared use of toilet and bathroom facilities at the Premises; and
 - (iii) shared use of all common rooms and common areas.
- (b) The **Participant**, and their Guardian or Advocate with the **Participant**'s consent, has the right to:
 - (i) access to the **Participant**'s own written records relating to this Agreement held by **SERVICE PROVIDER**
 - (ii) privacy, dignity and confidentiality;
 - (iii) choose the **Participant**'s own doctor, dentist and other health practitioners;
 - (iv) handle the **Participant**'s own affairs;
 - (v) choose whether to participate in programs;
 - (vi) independent advocacy; and
 - (vii) make a complaint.

4. Use of Premises

- (a) The Premises shall be used and occupied by the **Participant** along with shared **Participants**.

- (b) The **Participant** shall not allow any other person to use or occupy the Premises unless that other person is within the **Participant**'s Person-Centred Plan, without first obtaining **SERVICE PROVIDER** written consent and the consent of the other **Participants** in the Premises.
- (c) The **Participant** shall comply with any and all laws, ordinances, rules and orders of any Authority affecting the cleanliness, use, occupancy and preservation of the Premises.
- (d) **SERVICE PROVIDER** will provide and maintain the Premises in a reasonable state of repair, including responsibility for repairs arising from fair wear and tear.

5. Fees and Payments

- (a) The **Participant** will pay a fortnightly fee based on the Services provided to the **Participant** at the Premises (**Fees**). The amount the **Participant** will be required to pay is determined according to the State or Territory in which the Premises are located and as referred to in Schedule 2 of this Agreement.
- (b) The **Participant**'s first Fees payment will be due at the commencement of the residency at the rate in Item 9 of Schedule 1.
- (c) The preferred method of payment of the Fees is Electronic Fund transfer to **SERVICE PROVIDER**
- (d) Where Electronic fund transfer is not feasible for **Participant**, **SERVICE PROVIDER** will negotiate the most effective option for ensuring the **Participant** is able to pay their Fees in a timely manner, including a Pay on Invoice option (**Alternate Method**). If **SERVICE PROVIDER** accepts payment by an Alternate Method, the details and signature for the authorization by **SERVICE PROVIDER** of the Alternate Method must be provided at Item 9 of Schedule 1.
- (e) **SERVICE PROVIDER** will increase the Fees in accordance with the statutory increases in disability support entitlements. The **Participant** will be provided with four weeks' notice of any such increase to the Fees.
- (f) If the **Participant** is living away from the Premises for any period of time (e.g. holiday, hospital stay) the **Participant** is required to ensure that their Fees are paid for the period they are absent.
- (g) If in addition to Lodging and Boarding, SIL (Support independent living) service or any NDIS support for Daily Living Activities or Community Participant is also provided to **Participants**, **Service Provider** will make Service Booking for the service provided and claim for the services directly from funding authorities or Plan Manager as the case may be.
- (h) Provider will make service booking and will claim fund from NDIS.

6. SERVICE PROVIDER Obligations

6.1 SERVICE PROVIDER seeks to meet the Participant's housing needs by providing suitable housing and support.

6.2 Where this Agreement is for Lodging only, SERVICE PROVIDER will:

- (a) endeavor to assist the Participant to live comfortably with other Participants on the basis of mutual respect;
- (b) ensure that the Premises are clean and fit to live in;
- (c) ensure that the Premises are in a reasonable state of repair, including liaising with the landlord or real estate agent for repairs arising from fair wear and tear as well as attending to any emergency repairs in a timely manner, having regard to the safety, security and privacy of all Participants;
- (d) ensure the Premises comply with all relevant building codes, accommodation standards and all relevant laws.
- (e) ensure the property is fitted with adequate locking mechanisms to enable the Premises to be kept reasonably secure.
- (f) ensure working smoke alarms are installed and maintained.
- (g) provide support staff in accordance with any relevant government funding arrangements.
- (h) undertake a police check and required statutory assessments for all staff and volunteers.
- (i) protect the Participant's privacy and confidential information; and
- (j) provide you with five days' written notice of any change to its contact details at Item 13 of Schedule 2;

6.3 Where this Agreement is for Board only, SERVICE PROVIDER will:

- (a) provide the Participant with three meals a day, seven days per week;
- (b) arrange for payment of electricity, gas and water and (where applicable) local council rates or rent;
- (c) provide telephone and internet facilities and pay phone rental and reasonable local phone call costs for the Participant;
- (d) provide furniture, fittings, fixtures and electrical appliances to a reasonable standard in common areas in the Premises;
- (e) provide supports in a way that complies with all relevant laws, including the *NDIS Act 2013*, its rules and the Australian Consumer Law; and

- (f) issue invoices to the **Participant** as required under relevant consumer laws and if requested by the **Participant**.

6.4 Where this Agreement is for Board and Lodging, **SERVICE PROVIDER** will provide all items specified in paragraph 6.2 and 6.3 above.

7. General Information

7.1 Bedroom

Commencing from the date referred to in Item 7 of Schedule 1, the **Participant** will have sole use of a bedroom and share the use of the rest of the Premises, except for the other bedrooms and staffroom.

7.2 Furniture

SERVICE PROVIDER will provide basic furniture including bedroom furniture, linen, blankets and soft furnishings.

7.3 Food

- (a) Where this Agreement covers Board and Lodging:
 - (i) the Fees will cover the cost of providing three meals per day, seven days per week; and
 - (ii) where possible, every effort will be made to take into account dietary preferences or requirements of the **Participant** to meet the **Participant's** individual dietary requirements.
- (b) Where this Agreement covers Lodging only the **Participant** will be responsible for supplying their own meals.
- (c) The **Participant** acknowledges that **SERVICE PROVIDER** employees may, from time to time, dine with the **Participant** to assist with the service or support plan of the **Participant** or to foster positive relationships in the Premises generally.

7.4 Household Duties

- (a) The **Participant** is expected to participate in shopping, cooking, cleaning, gardening and other household chores to the best of their ability.
- (b) The **Participant** is expected to cooperate with others to keep the common areas clean and tidy to the best of their ability, and **SERVICE PROVIDER** support will focus on maximising the **Participant's** capacity to be as independent as possible.

7.5 Support

- (a) **SERVICE PROVIDER** will provide the **Participant** with support in accordance with the funding provided by the relevant government department, agency or other organisation.

- (b) In planning the Participant's support, SERVICE PROVIDER will discuss the Participant's needs with the Participant and agree on the way support will be provided.

7.6 Medical/Dental

- (a) Appropriately trained staff will assist in the administration of medication for the Participant as per the SERVICE PROVIDER medication policy.
- (b) The Advocate (and Guardian if applicable) will be responsible for all medical/dental check-ups and to access whatever other medical/dental/paramedical services the Participant may require.
- (c) In the event of an emergency, and if SERVICE PROVIDER is unable to contact the Guardian or Advocate (or a designated emergency contact person), the Participant will be transported to SERVICE PROVIDER ' designated doctor or to a hospital for medical assistance.

7.7 Personal Care

- (a) The Participant will be encouraged to build and maintain independence being responsible for personal hygiene.
- (b) The Participant is expected to have available appropriate toiletries and attend to their own personal cleanliness such as daily bathing and cleaning of teeth, shaving and sanitary needs (where relevant). Where necessary, assistance for personal care will be given (depending upon Participant support plan), however, support will continue to focus on maximising the Participant's capacity to be as independent as possible.
- (c) All personal care items must be provided by the Participant or the Guardian or Advocate at the Participant's own cost.

7.8 Personal Property

- (a) The Participant (with assistance where necessary) will be responsible for the cleanliness/maintenance of their own personal possession
- (b) SERVICE PROVIDER accepts no liability for the loss, damage or theft of personal property beyond the limits outlined in clause 7.15.

7.9 Clothing

- (a) SERVICE PROVIDER can assist the Participant to purchase appropriate clothing where there is no support for the Participant from family, Advocate or Guardian.
- (b) Where the Guardian or Advocate is responsible for the Participant's financial management, they are responsible to ensure there are sufficient funds to meet this need.

- (c) The **Participant** is encouraged to dress neatly, cleanly and to wear clothes that are appropriate for the occasion.

7.10 Telephone

The **Participant** will be responsible for the cost of telephone calls made by them from a telephone provided by **SERVICE PROVIDER**, except local calls.

7.11 Pets

- (a) If the **Participant** wishes to own a pet, it must first be discussed with and approved by the area manager before any pet is obtained or brought into the Premises.

7.12 Alterations

- (a) The **Participant** is prohibited from making any alterations to the Premises without consent from ALIGNED COMMUNITY CARE PTY LTD. The **Participant** must not carry out painting or decorating that marks the Premises without obtaining the permission of **Residential accommodation managed by Service provider** Manager.
- (b) If the **Participant** requires any alterations to be made to the property for their use, to the extent **SERVICE PROVIDER** agrees in its absolute discretion to make these alterations, the **Participant** must pay **SERVICE PROVIDER** for the costs it incurs in making these alterations.

7.13 Quiet Enjoyment (Disturbance)

The **Participant** will not interfere with the peace, comfort, enjoyment and privacy of other **Participants**, staff or neighbours in an unreasonable way.

7.14 Damage

- (a) If the **Participant** damages the Premises, furnishing, fittings or fixtures, or damage inflicted by them is greater than normal wear and tear, the **Participant** accepts full liability for necessary repairs or replacement.
- (b) **SERVICE PROVIDER** is responsible for arranging any other necessary repairs.
- (c) If unintentional damage is caused to the Premises that renders it no longer safe or practical for the **Participant** to live at the Premises, **SERVICE PROVIDER** will assess the damage and either:
 - (i) write to the **Participant**, Guardian or Advocate explaining how the damage will be repaired and, if required, will work with any relevant Authority to find a temporary home for the **Participant** during the repairs; or
 - (ii) work with the **Participant**, Guardian or Advocate and any relevant Authority to find the **Participant** another permanent home and terminate this Agreement.

7.15 Security

The **Participant**'s bedroom door may be locked when the **Participant** is not in attendance, but for safety reasons the door must be left unlocked if it is occupied. Staff will provide support for all security matters.

7.16 Privacy

- (a) **SERVICE PROVIDER** and its staff respect the **Participant**'s privacy.
- (b) Staff will only enter the **Participant**'s bedroom immediately without notice to the **Participant** in an emergency, to carry out emergency repairs or inspections.
- (c) Staff will endeavour to provide the following notice to the **Participant** for access to the **Participant**'s bedroom:
 - (i) 24 hours' notice for the purposes of deep cleaning, general repairs or maintenance;
 - (ii) 48 hours' notice for the purposes of showing the room to a prospective **Participant** after notice to terminate has been given, carrying out inspections and any other reason.
- (d) The **Participant** will respect the privacy of other **Participants** by only entering their bedrooms when invited.

7.17 Visitors

- (a) The **Participant** may invite visitors to the Premises provided there is a prior agreement with other **Participants** and with the knowledge of the Support staff/ Area Manager.
- (b) Visitors, including family, may not enter the Premises without prior contact with the support staff/ manager to arrange a suitable time.
- (c) Visitors are to enter common living areas only, unless the **Participant** invites them to their private bedroom.
- (d) Prior approval of the other housemates is required before inviting visitors for a meal.
- (e) All visitors, including family, must sign the visitor's book on entering and leaving the Premises.

It is a requirement by law that a record be kept of any individual's presence in the Premises in case of fire or emergency evacuation. It is the House manager responsibility to confirm that all individuals are accounted for.

7.18 Personal Information

- (a) **SERVICE PROVIDER** will maintain a file containing relevant information about the **Participant** and their accommodation, support needs and experiences. Privacy and

confidentiality will be maintained in accordance with **SERVICE PROVIDER** policies and procedures, as well as in accordance with the Australian Privacy Principles, and will only be shared with the **Participant**'s consent.

- (b) The **Participant** may inspect their file relating to this Agreement by prior arrangement.

7.19 Financial Accountability

SERVICE PROVIDER will provide receipts for money received from the **Participant**, Guardian or Advocate. Receipts will record the amount, the date of payment, what the payment is for and what period it covers.

7.20 Record Keeping

- (a) **SERVICE PROVIDER** will keep full and accurate accounts and financial records of all payments made by you, repairs, maintenance or insurance records for your home and any complaints which it has received for five years from the date each record is received.
- (b) The **Participant**, Guardian or Advocate may make a request to House Manager to access the Records.
- (c) Unless contrary to any law, **SERVICE PROVIDER** will provide the **Participant**, Guardian or Advocate with access to the Records within a reasonable time after the request is made.

7.21 Financial Security in Conjunction with SERVICE PROVIDER ' Financial Management Policy

SERVICE PROVIDER will ensure that the **Participant** is assisted (where necessary) with the safekeeping of the **Participant**'s pension/wages/spending money and with the operation of a personal bank account.

7.22 Decision Making

- (a) **SERVICE PROVIDER** will invite the **Participant** and the Guardian or Advocate to meetings including any major decisions affecting the Premises' household. **SERVICE PROVIDER** will also regularly discuss with the **Participant** any ideas about how the Premises could be made a better place to live.

7.23 Person Centred Plan

- (a) **SERVICE PROVIDER**, the **Participant** and the Guardian or Advocate will together develop an individual person-centred approach to support (**Person Centred Plan**). The Person Centred Plan will include the ways in which the **Participant** would like to be supported (day to day) and where possible what activities the **Participant** would like to be involved in, friendships/relationships to be supported and annual holidays.

- (b) Through the Person-Centred Plan, **SERVICE PROVIDER** aims to support the **Participant** to achieve a quality of life of the **Participant's** choosing, in line with the goals the **Participant** has for their life.
- (c) The Person Centred Plan will detail the steps required to achieve the **Participant's** goals within three months of residency and these will be reviewed as required.

7.24 Protection From and Freedom From Abuse

- (a) **SERVICE PROVIDER** will ensure that the **Participant's** rights to protection and freedom from abuse are upheld.
- (b) It is expected that the **Participant** will ensure their behavior does not put other **Participants** or staff at risk. Where this occurs, **SERVICE PROVIDER** will monitor the **Participant's** behavior and make reports appropriately according to **SERVICE PROVIDER** policies and procedures.

7.25 Complaints

- (a) Procedures for making a complaint are outlined in **SERVICE PROVIDER** policies and procedures.
- (b) **SERVICE PROVIDER** will quickly and fairly investigate any complaint made by the **Participant** or the Guardian or Advocate.

7.26 Smoking

In line with **SERVICE PROVIDER** No Smoking policy, smoking is not permitted in any enclosed area, including vehicles, where the smoke can affect other people and where there is a possibility of contamination of indoor areas.

7.27 Drugs

In line with **SERVICE PROVIDER** duty of care and legal responsibilities:

- (a) the use by the **Participant** of illegal drugs or prescription drugs without medical prescription is not permitted;
- (b) all medications, including over the counter medication such as cough mixture or paracetamol, must be stored in a locked place in accordance with **SERVICE PROVIDER** Management of Medication Policy; and
- (c) all staff have a duty of care to monitor the **Participant's** health and therefore must be aware of all medications taken by the **Participant**.

7.28 Hazardous Materials

The **Participant** is not permitted to keep on the Premises any item of a dangerous, flammable or explosive character that might unreasonably increase the danger of fire or explosion on the Premises or that might be considered hazardous or extra hazardous by any responsible insurance company acting reasonably.

7.29 Policies and Procedures

All **SERVICE PROVIDER** policies and procedures with respect to the provision of supported accommodation and disability are available for the **Participant**, their Guardian or Advocate to access.

7.30 Termination by **SERVICE PROVIDER** due to Unacceptable Behaviour and Notice

(a) **SERVICE PROVIDER** may terminate this Agreement and require the **Participant** to vacate the Premises where the **Participant**:

- (i) cannot be supported at the Premises or the Services cannot be provided without serious risk of harm to the **Participant**, staff or other occupants due to the **Participant**'s behavior including physical violence, willful damage to property, verbal abuse, creating disharmony, threatening the safety of any person, continually disruptive behavior that upsets others or using the Premises for an illegal purpose; or
- (ii) fails to pay Fees or any other payments required under this Agreement and payment of the overdue amounts is not made within 14 days of receiving an overdue notice; or
- (iii) ceases to have SIL/SDA as a reasonable and necessary support in their NDIS or COS plan.
- (iv) Participant support hours under their NDIS plan and/or support hours being obtained from Service **Provider** is substantially reduced (becomes less than 20 hours per week)

(b) The notice of termination by **SERVICE PROVIDER** for unacceptable behavior shall:

- (i) be in writing;
- (ii) provide the **Participant** with a reasonable notice period to be determined by **SERVICE PROVIDER** having regard to all the circumstances including the safety of staff and other **Participants**;
- (iii) be signed by a Senior Manager of **SERVICE PROVIDER** ;
- (iv) identify the Premises;
- (v) specify the day on which the **Participant** is required to vacate the Premises;
- (vi) specify and give particulars of the grounds (where applicable) on which the notice is given; and
- (vii) include written notification to the relevant Authority, as applicable.

7.31 Exit Policy — Unacceptable Behaviour

SERVICE PROVIDER recognizes that it is important to consult and allow behavior

management processes to be undertaken before taking the final step to exclude the **Participant** from the Premises. The following process will be undertaken in the event that the **Participant** behaves in an unacceptable manner:

- (a) a meeting will be conducted between **SERVICE PROVIDER**, the **Participant** and the Guardian or Advocate;
- (b) a written warning stating the grounds of the unacceptable behavior will be provided to the **Participant** and the Guardian or Advocate;
- (c) a review of the behavior at timeframes agreed between all parties including the development or redevelopment of a Behavior Management Plan will be conducted;
- (d) if the above-mentioned process is unsuccessful in managing the **Participant's** behavior, a formal letter will be issued to the **Participant** and the Guardian or Advocate stating the reasons requiring the **Participant** to vacate the Premises;
- (e) where necessary, notification in writing to the relevant Authority with relevant information and reasons for the action will be sent.

7.32 Termination by Due to Permanent abandonment.

SERVICE PROVIDER may terminate this Agreement automatically and without notice if the **Participant** stops living at the property permanently.

7.33 Termination by SERVICE PROVIDER for Any Other Reason and Notice

- (a) **SERVICE PROVIDER** may terminate this Agreement by providing 30 days' notice for any reason other than Unacceptable Behaviour, including where the **Participant's** behaviour causes damage to the Premises (whether intentional or not) and **SERVICE PROVIDER** considers that the **Participant** poses an ongoing risk to property.
- (b) The notice shall:
 - (i) be in writing;
 - (ii) be signed by a Senior Manager of **SERVICE PROVIDER** .
 - (iii) identify the Premises and specify the day on which the **Participant** is required to vacate the Premises;
 - (iv) specify and give particulars of the grounds (where applicable) on which the notice is given; and
 - (v) include written notification to the relevant Authority, as applicable.

7.34 Termination by the Participant, Guardian or Advocate and Notice

- (a) The **Participant**, Guardian or Advocate may terminate this Agreement by giving at least 30 days' notice in writing, expiring on any day.

- (b) The **Participant** will be required to pay all Fees payable until the end of the notice period, unless otherwise agreed by **SERVICE PROVIDER**.

7.35 Variation to this Agreement

If changes to this Agreement are required, the **Participant**, Advocate or Guardian and **SERVICE PROVIDER (Parties)** agree to:

- (a) discuss and review this Agreement; and
- (b) that any changes to this Agreement will be in writing, signed, and dated by the Parties.

7.36 Conflict of Interest and Relationships

- (a) The **Participant** acknowledges that **SERVICE PROVIDER** may be both the service provider and accommodation provider under this Agreement.
- (b) While **SERVICE PROVIDER** endeavors to ensure its service provision function is independent so far as practically possible to its accommodation provision function, the **Participant** warrants that they are comfortable if **SERVICE PROVIDER** is both the service provider and accommodation provider under this Agreement.

Schedule 1

Item 1	Date of Agreement	17/06/2024
Item 2	Participant (Participant) Full Name	Richard William McLean
Item 3	Participant (Participant) Date of Birth	8/04/1973
Item 4	Premises Address	3 Warrigo Street, Sadler, NSW
Item 5	State/Territory	NSW
Item 6	Service	Lodging Only (Boarding not included in the service provided)
Item 7	Date of Occupy Room	17/06/2024
Item 8	Payment Amount	\$ 300 per week (including wifi and utilities)
Item 9	Payment Method	Centrepay/Direct Debit by NSW TAG or by Client
Item 10	Bank Account Details	CBA BSB:062 709 Account: 10376138 Account Name: Aligned Community Care Pty Ltd
Item 11	Detail of Advocate/Legal Guardian (if any): Participant or Participant representative and or Participant Legal Guardian to complete below for detail of Advocate.	
	Name of Advocate/ Legal Guardian	
	Organization of Advocate/ Legal Guardian	
	Address of Advocate/ Legal Guardian	
	Contact Phone of Advocate/ Legal Guardian	
	Email Address of Advocate/ Legal Guardian	
Item 12	Detail of SERVICE PROVIDER	
	Service Provider Contact Name	Krystal Mills

	<u>Service Provider</u> Address	49 Fourth Ave, Austral, NSW 2179
	<u>Service Provider</u> phone number	0489 996 413
	<u>Service Provider</u> Email Address	info@alignedcommunitycare.com

Schedule 2

- Board and/or Lodging Arrangements Applying to State or Territory of Residence: New South Wales

SIGNED by the **Participant** in the presence of:

<u>Participant</u> Name	Richard William McLean
Signature of <u>Participant</u>	
Date of Signature by <u>Participant</u>	26.6.24
Witness Name	Karen Phillips
Witness Signature	
Date of Witness Signature	26.6.24

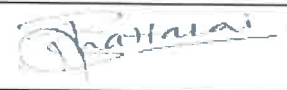
SIGNED by the **Guardian/Advocate** in the presence of:

Guardian/Advocate Name	
Guardian/Advocate Signature	
Date of Signature by Guardian/Advocate	
Witness Name	
Witness Signature	

Date of Witness Signature	
---------------------------	--

EXECUTED by SERVICE PROVIDER ALIGNED COMMUNITY CARE PTY LTD
(ABN12641953639) , NDIS Registration ID: 4-IP1814N

Designation must be Manager or above:

Name and Position	Krystal Mills, Business Development Manager /Regional Manager
Signature	
Date of Signature	17/06/2024
Witness Name	Pratik Bhattarai, Regional Manager
Witness Signature	
Date of Witness Signature	17/06/2024

INTERNAL USE ONLY

- Once Agreement has been completed and executed, please send to info@alignedcommunitycare.com.au

Check List	Actioned
Signed by <u>Participant</u> /Guardian/Advocate	Yes ☐ No ☐
Signed by <u>SERVICE PROVIDER</u>	Yes ☐ No ☐
Agreement has been discussed and explained to <u>Participant</u> before execution.	Yes ☐ No ☐
Direct Debit Request form completed and signed	Yes ☐ No ☐

Annexture 3- screen shot of some of the message that was considered in deciding occurrence of serious breach on your part

**ALIGNED COMMUNITY CARE TOOK ME ON
TO FUCK ME OVER AND ABUSE ME ALONG
WITH UPSCALE CARE, BABER RASHEED IS
FROM ALIGNED, AND ALEX DBOSS AND WOR
FROM UPSCALE**

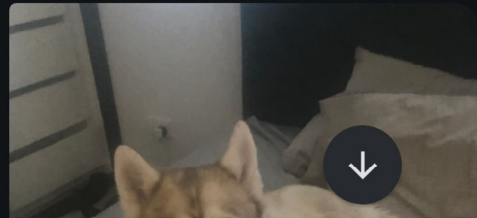


Barran Dodger



Demonstrating the neglect I found out that a guy I had sex with last night is HIV positive. I will be ok if I get the anti hiv medicine but they are refusing to provide a way to get to the drs to get a script or a means to get there. The support worker has just left she was supposed to be here for four hours but she was only here not even three. In addition crystal is sick! She needs a vet she needed a vet last week and they refuse to find a way to get her seen to. Ring Alex and tell him if I Aquire HIV or something happens to my dog, I will wreck the cunt with my bare hands. I'll fucking kill Jim if something happens to my dog. Him and Baber rashers get a fucking Avo I don't care they are going to want to see the threat, and I will provide this as evidence of their gross negligence. Fucking do something or I will fucking murder them.

Look at her she won't wine out of the darkened room I'll fucking kill them



Text message





Barran Dodger



We will be taking the necessary steps needed as you cannot live there for free unfortunately.

8:46 am

If you send that fucking cunt if a Maria I'll let her tyres down Snd shove a sock in her mouth

Send someone else

I'm going to police to make a report on the corruption neglect Snd abuse

Hi Richard,

Unfortunately we have been notified this morning that staff have cancelled their shift.

We are working on a replacement, alternately services will not resume for today if we cannot source a replacement. Sorry about the inconvenience caused Baber



Text message





Barran Dodger



I'm going to police to make a report on the corruption neglect Snd abuse

Hi Richard,

Unfortunately we have been notified this morning that staff have cancelled their shift.

We are working on a replacement, alternately services will not resume for today if we cannot source a replacement. Sorry about the inconvenience caused Baber

What a weak cunt you are Baber

12:04 pm

You should read www.barrandodger.com.au so you know I will expose your role in my demise and co conspirer in my desecration except ultimately it will be your shame to embody.



Tap to load preview



Text message





Baber Rasheed Aligned Community Care Alex Aboos Wor Upscale Care Kel Graham NDIS Cri...

29 views 2 days ago ...more



Dr Rich McLean 1.24K

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